Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Tuesday, September 21, 2021 at 7:00 p.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order & Land Acknowledgement

Mayor Collier called the meeting to order at 7:01 p.m. Councillor Bower acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

Motion to Suspend the Rules of Procedure

Moved by: L. Bower
Seconded by: M. Crawford

That the rules of procedure be suspended in order to introduce a closed session item without notice regarding a personal matter about an identifiable individual, including municipal or local board employees.

CARRIED
on 2/3rds

3. Adoption of the Minutes

Moved by: R. Tyler Morin
Seconded by: S. Lee

That the following minutes of previous Council meetings be adopted:

- Special Meeting of June 16, 2021;
- Closed Session Meeting of June 16, 2021;
- Regular Meeting of June 21, 2021;

- Special Meeting of July 13, 2021;
- Special Meeting of August 31, 2021; and
- Closed Session Meeting of August 31, 2021

CARRIED

4. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Alexander Harras, Manager of Legislative Services/Deputy Clerk, noted that additional correspondence items were received in relation to agenda item 7.4.1 and circulated to Council Members in advance of the meeting.

5. Delegations and Presentations

5.1 Presentation: Durham Regional Cycling Plan

Anthony Caruso, Senior Planner, and Danielle Culp, Planning Analyst, Regional Municipality of Durham, provided an overview of the draft Durham Regional Cycling Plan. A. Caruso reviewed process and timelines, public engagement initiatives, Regional Cycling Plan vision, network vision, and primary cycling network phasing across Durham municipalities and the Town of Ajax. D. Culp reviewed proposed cycling facility types, cycling strategies, and recommendations including financial considerations and implications, key supports, roles and responsibilities for area municipalities, and next steps.

Council Members asked questions regarding opportunities to implement a bike share program, bike segment locations, length of the cycling network in the Town of Ajax compared to other Durham municipalities, cost sharing opportunities with the Region, status of funding supports, impacts to the timeline of the Westney Road expansion, design elements and costs, connectivity segments north of the 407 for access to the urban area, projected cycling ridership, and maintenance responsibilities. A. Caruso, D. Culp and Greg Pereira, Manager of Transportation Planning, Regional Municipality of Durham, responded to questions from Council Members.

6. Correspondence

Moved by: A. Khan
Seconded by: J. Dies

That the report dated September 21, 2021 containing Items of Correspondence be received for information.

CARRIED

7. Reports

7.1. Community Affairs & Planning Committee Report

7.1.1 Community Affairs & Planning Committee, September 7, 2021

Moved by: L. Bower
Seconded by: R. Tyler Morin

That the Community Affairs & Planning Committee Report dated September 7, 2021 be adopted.

CARRIED

7.2. General Government Committee Report

7.2.1 General Government Committee, September 13, 2021

Moved by: A. Khan
Seconded by: S. Lee

That the General Government Committee Report dated September 13, 2021, be adopted.

CARRIED

7.4 Departmental Reports

7.4.1 PDS-2021-33: Official Plan Amendment Application OPA17-A1 Zoning By-law Amendment Application Z1/17 Medallion Developments (Castlefields) Lands located along the north side of Rossland Road East between the Carruthers Creek and Audley Road North

Referred from September 7, 2021 CAP meeting

Geoff Romanowski, Director of Planning and Development Services, discussed the status of negotiations between Medallion Developments and the Town of Ajax regarding Section 37 community benefits and reviewed agreed upon terms between the parties, including the items added for consideration at the September 7th, 2021 CAP meeting.

Council Members asked questions regarding cost of the works and contingencies in place should the costs exceed $2,990,000.00, and reasons for delays in the negotiation process. G. Romanowski responded to questions from Council Members.

Mayor Collier vacated the Chair. Regional Councillor Lee assumed the Chair.

Main Motion

Moved by: L. Bower
Seconded by: R. Tyler Morin

1. That Council direct staff to advise the Ontario Land Tribunal that, subject to the applicant providing Section 37 benefits to the satisfaction of the Town, the Town of Ajax will not object to Official Plan Amendment Application OPA17-A1, substantially in accordance with the draft official plan amendment within Attachment 1 to this report,

submitted by Medallion Developments (Castlefields) Limited, to facilitate the future development of the subject lands for:

- 1,304 residential rental apartment units within one 15-storey building (Block A), four 8-storey buildings (Blocks B to E), and fifty-three 3-storey townhouses;
- 950 m^2 (10,226 ft^2) of retail/commercial space located at the ground floor of the building in Block E; and
- a 0.96 hectare (2.37 acre) park block.

2. That Council direct staff to advise the Ontario Land Tribunal that, subject to the applicant providing Section 37 benefits to the satisfaction of the Town, the Town of Ajax will not object to Zoning By-law Amendment Application Z1/17, substantially in accordance with the draft zoning by-law amendment provided within Attachment 2 to this report, submitted by Medallion Developments (Castlefields) Limited, to facilitate the future development of the subject lands for:

   - 1,304 residential rental apartment units within one 15-storey building (Block A), four 8-storey buildings (Blocks B to E), and fifty-three 3-storey townhouses;
   - 950 m^2 (10,226 ft^2) of retail/commercial space located at the ground floor of the building in Block E; and
   - a 0.96 hectare (2.37 acre) park block.

3. That Medallion Developments (Castlefields) Limited's appeal to the Ontario Municipal Board (OMB) of Amendment No. 41 to the Town of Ajax's Official Plan be withdrawn.

4. That Council approve the establishment of a new reserve to track and report on Increased Height and Density contributions in accordance with Section 37 provisions of the *Planning Act*.

Amendment

Moved by: S. Collier
Seconded by: J. Dies

That clause 1 be amended by adding the following words, immediately after the words "to the satisfaction of the Town":

'as specified in clause 5 of this resolution'

And;

That clause 2 be amended by adding the following words, immediately after the words "to the satisfaction of the Town":

'as specified in clause 5 of this resolution'

And;

That an additional clause be added as 'clause 5', to read as follows:

5. That, for the purposes of this resolution, the following Section 37 benefits totaling an estimated $2,990,000.00 shall be deemed to be "satisfactory to the Town":

- (2) Multi-use 3m Wide Asphalt Trail connections through Woodlot to Audley Road and from the north end of Snowling Dr. to Carruthers Creek;
- Tree Planting - Snowling Dr. at Trail;
- Tree Planting - Brice Dr. Greenbelt;
- Splashpad at Castlefields Park;
- Pedestrian Improvements / Traffic Calming at Rushworth & Carberry/Mansbridge and Hilton Gate & Styles/Whitlock;
- Traffic Signal at Rossland Road & Hilton Gate; and
- Construction of New Park Block.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Councillor Khan, Councillor Tyler Morin, Regional Councillor Lee

Opposed: None

Mayor Collier resumed the Chair.

Main Motion as Amended

Moved by: L. Bower
Seconded by: R. Tyler Morin

1. That Council direct staff to advise the Ontario Land Tribunal that, subject to the applicant providing Section 37 benefits to the satisfaction of the Town as specified in clause 5 of this resolution, the Town of Ajax will not object to Official Plan Amendment Application OPA17-A1, substantially in accordance with the draft official plan amendment within Attachment 1 to this report, submitted by Medallion Developments (Castlefields) Limited, to facilitate the future development of the subject lands for:

    - 1,304 residential rental apartment units within one 15-storey building (Block A), four 8-storey buildings (Blocks B to E), and fifty-three 3-storey townhouses;
    - 950 m^2 (10,226 ft^2) of retail/commercial space located at the ground floor of the building in Block E; and
    - a 0.96 hectare (2.37 acre) park block.

2. That Council direct staff to advise the Ontario Land Tribunal that, subject to the applicant providing Section 37 benefits to the satisfaction of the Town as specified in clause 5 of this resolution, the Town of Ajax will not object to Zoning By-law Amendment Application Z1/17, substantially in accordance with the draft zoning by-law amendment provided within Attachment 2 to this report, submitted by Medallion Developments (Castlefields) Limited, to facilitate the future development of the subject lands for:

    - 1,304 residential rental apartment units within one 15-storey building (Block A), four 8-storey buildings (Blocks B to E), and fifty-three 3-storey townhouses;
    - 950 m^2 (10,226 ft^2) of retail/commercial space located at the ground floor of the building in Block E; and

- a 0.96 hectare (2.37 acre) park block.

3. That Medallion Developments (Castlefields) Limited's appeal to the Ontario Municipal Board (OMB) of Amendment No. 41 to the Town of Ajax's Official Plan be withdrawn.

4. That Council approve the establishment of a new reserve to track and report on Increased Height and Density contributions in accordance with Section 37 provisions of the *Planning Act*.

5. That, for the purposes of this resolution, the following Section 37 benefits totaling $2,990,000.00 shall be deemed to be "satisfactory to the Town":
   - (2) Multi-use 3m Wide Asphalt Trail connections through Woodlot to Audley Road and from the north end of Snowling Dr to Carruthers Creek;
   - Tree Planting - Snowling Dr. at Trail;
   - Tree Planting - Brice Dr. Greenbelt;
   - Splashpad at Castlefields Park;
   - Pedestrian Improvements / Traffic Calming at Rushworth & Carberry/Mansbridge and Hilton Gate & Styles/Whitlock;
   - Traffic Signal at Rossland Road & Hilton Gate; and
   - Construction of New Park Block.

CARRIED

Recorded Vote

In Favour: Councillor Tyler Morin, Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Mayor Collier

Opposed: Regional Councillor Lee, Councillor Khan

8. Regional Councillors' Report

Regional Councillors discussed health impacts of climate change and increased cases of Lyme disease, and updates regarding the Regional red light camera and Automated Speed Enforcement (ASE) programs.

Council Members asked questions regarding new COVID-19 contact tracing requirements, speed reduction statistics, and revenues generated from the ASE program. Regional Councillors responded to questions from Council Members.

Moved by: S. Lee
Seconded by: L. Bower

That the Regional Councillors' Reports of September 21, 2021 be received for information.

CARRIED

9. Business Arising from Notice of Motion

Motion to Suspend the Rules of Procedure

Moved by: A. Khan

Seconded by: L. Bower

That the Rules of Procedure be suspended in order to introduce a motion without notice regarding Bike Storage/Lockers at the Ajax GO Station.

CARRIED
on 2/3rds

9.1 Changes Required to Make New Builds More Affordable and Achievable for Buyers

Councillor Khan and Councillor Tyler Morin introduced the motion and reviewed its contents. Council Members asked questions regarding the specific requests in the motion, and whether more general language could be accepted as friendly amendments. Councillor Khan and Councillor Tyler Morin responded to questions from Council Members and were agreeable to the proposed friendly amendments.

Moved by: A. Khan
Seconded by: R. Tyler Morin

WHEREAS all levels of governments are considering new policies to tackle the housing crisis, with improving affordability being a top priority;

AND WHEREAS the minimum down payment for a resale property is usually 5%, while a pre-construction property can be as high as 25% paid through a cost-prohibitive payment schedule set by the builder;

AND WHEREAS a 25% deposit on a $750,000 new build amounts to $187,500, which buyers have to come up with before they can even move in and stop paying the mortgage or rent on their current home;

AND WHEREAS new builds are notorious for delays in construction causing deposits to sit in trust, or even more frustrating, some new builds are simply cancelled and deposits returned with no earned interest;

AND WHEREAS there is no regulation around deposits for new builds, and are set at the discretion of the builder to satisfy lender requirements for financing to build;

AND WHEREAS governments are encouraging people to invest in new condo and townhouse builds in urban areas to increase density, connect homes and jobs, and encourage transit use;

NOW THEREFORE BE IT RESOLVED THAT:

1. The Ontario Government be requested to work with Tarion (the regulator for Ontario's new home building industry), the development sector, and lending organizations to reduce deposits for new builds to lessen the burden and strain on buyers, provide more stability, and make the process more affordable and manageable for all parties; and

2. A copy of this motion be circulated to the Honourable Doug Ford, Premier of Ontario, the Honourable Steve Clark, Minister of Municipal Affairs and Housing, the Honourable Rod Phillips, Minister of Long Term Care and MPP for Ajax, the Honourable Mark

Holland, MP for Ajax, Peter Balasubramanian, CEO of Tarion, all Durham area municipalities, and Ontario's Big City Mayors.

CARRIED

9.2 **Access to Affordable and Accessible Child Care**

Regional Councillor Lee and Councillor Khan introduced the motion and reviewed its contents.

Moved by: S. Lee
Seconded by: A. Khan

WHEREAS families in the Greater Toronto Area, including Ajax, pay the highest child care costs in Canada, with most families paying more than $10,000 annually for each child;

AND WHEREAS the current COVID-19 pandemic has highlighted the important role child care plays in economic security for families and early learning opportunities for children;

AND WHEREAS affordable, high-quality, inclusive and accessible child care is key to reducing equity gaps that have been amplified as a result of COVID-19;

AND WHEREAS the Conference Board of Canada has reported that every $1 invested in expanding early childhood education and supports yields $6 in long-term economic benefits;

AND WHEREAS all major parties in the federal election have acknowledged that affordable and sustainable child care is required for the economic and societal advancement of the country;

NOW THEREFORE BE IT RESOLVED THAT:

1. Council affirm its support for building a system of early learning and child care services that are affordable, high quality, inclusive and accessible for all families;

2. Council calls upon the incoming federal government to establish and implement a National Child Care Framework, including the reduction in full-time child care fees and long-term goals of increasing accessibility and affordability;

3. Council encourages the provincial government to work in partnership with municipalities to implement any framework across Ontario;

4. That staff be directed to actively monitor federal developments on the issue, and engage with the Region of Durham and the provincial planning discussions that take place to ensure the perspectives of Ajax families are appropriately represented;

5. That a copy of this Motion be shared with all members of Durham Regional Council, Durham Regional Chair John Henry, Minister of Education Stephen Lecce, MPP Rod Phillips, all Durham Region MPPs, the Ajax MP-elect, all Durham Region MP-elects, the Prime Minister-elect, the appointed federal Cabinet Minister responsible for child care, and Ontario's Big City Mayors.

CARRIED

9.3 **Request for Bike Storage/Lockers at the Ajax GO Station**

Councillor Tyler Morin and Regional Councillor Crawford introduced the motion and reviewed its contents.

Moved by: R. Tyler Morin
Seconded by: M. Crawford

WHEREAS Ajax is a Silver designated Bicycle Friendly Community with a 140 km bike network that offers access to a wide variety of destinations within a 20-minute bike ride from anywhere in town;

AND WHEREAS since the start of Covid-19 there has been growing interest in bicycle commuting and further year-round riding;

AND WHEREAS if bicycle commuting is to remain a sustainable transportation option beyond the pandemic, timely investments in secure and convenient bike infrastructure such as trip-end facilities (bike parking, service stations, shelters, lockers, etc.) are required at GO Transit stations;

AND WHEREAS, for example, there are only two GO Transit stations (Scarborough and Rouge Hill) out of nine stops along the Lakeshore East Line that offer the security and convenience of bike storage/lockers for commuters;

AND WHEREAS the Town's Transportation Demand Management Plan includes an action to work with partners to facilitate a secure bicycle parking/commuter hub;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council formally requests Metrolinx to consider providing secure bike storage/lockers at the Ajax Go Station as part of its 2022 budget process; and

2. A copy of this motion be circulated to the Honourable Caroline Mulroney, Minister of Transportation, the Honourable Rod Phillips, Minister of Long Term Care and MPP for Ajax, Phil Verster, CEO of Metrolinx, and all Durham area municipalities.

CARRIED

10. By-laws

Moved by: L. Bower
Seconded by: S. Lee

That By-law numbers 51-2021 to 61-2021 be read a first, second and third time and passed.

CARRIED

Closed Session (8:42 p.m.)

Authority to Hold a Closed Meeting and Related In-Camera Session (8:42 p.m.)

Moved by: R. Tyler Morin

Seconded by: A. Khan

That Council convene into a closed session pursuant to Section 239 (2)(b) of the Municipal Act to discuss a personal matter about an identifiable individual, including municipal or local board employees.

CARRIED

Open Meeting (9:48 p.m.)

Ratify Directions from Closed Session

Moved by: A. Khan
Seconded by: L. Bower

That all directions approved in the Closed Session be ratified.

CARRIED

11. Notice of Motion

Regional Councillor Lee indicated that he will be bringing forward a motion to the October meeting of Council directing staff to examine overnight parking passes.

12. New Business - Notices & Announcements

Members of Council highlighted upcoming events and activities including a Ward 1 community meeting on Monday, September 27, 2021, a Ward 3 community meeting on September 27, 2021, and that Ward Council Newsletters have been mailed out.

13. Confirming By-Law

Moved by: M. Crawford
Seconded by: S. Lee

That By-law number 62-2021 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on September 21, 2021 be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: J. Dies
Seconded by: L. Bower

That the September 21, 2021 meeting of the Council of the Town of Ajax be adjourned (9:52 p.m.)

CARRIED

_____
Mayor

_____
D-Clerk